

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE**

Order on Sealing and In-Camera Review

Entered: November 26, 2025 **Synthetic docket:** SYN-DMD-25-CV-0914 **Judge:** Sable Hart, fictional United States District Judge

DOE moves to maintain sealed treatment of controlled counterparts submitted for resolution of the parties' cross-motions. Open Grid does not oppose temporary in-camera review but objects to sealing entire documents through appeal on a consolidated rationale. The motion has remained publicly docketed for more than fourteen days.

The materials are wholly fictional and contain no real cyber information. They nevertheless model asserted nonpublic operational and human-safety category relationships. Public versions use standardized notices, while controlled versions use inert labels. The Court treats the asserted interest as it would be presented in a genuine access dispute without suggesting that the labels themselves are actionable.

The Court has reviewed the public motion, confidentiality certificate, objections, and both forms of the tendered materials. It concludes that controlled review will assist adjudication of Exemptions 7(E), 7(F), and segregability. For the reasons stated below, the consolidated motion is granted and all identified controlled counterparts will remain sealed under a common restriction.

Public Notice and Opportunity to Object

D. Md. Local Rule 105.11 requires a sealing motion to identify the material, provide specific factual reasons supporting sealing, and explain why alternatives are inadequate. The motion remains publicly available on the docket for at least fourteen days before the Court rules.

DOE filed its motion and sealed-materials chart on November 11. The chart lists the primary and supplemental Vaughn pairs, three sample-record pairs, three memorandum pairs, and the in-camera declaration pair. It identifies a public counterpart for each controlled item.

Open Grid responded within the notice period. It argues that paired public filing is useful but that DOE has not justified sealing every page of each controlled record or using one duration for materials with different judicial functions. No other fictional participant sought leave to be heard.

The Court finds that public notice occurred and that the parties had an opportunity to address access. The open motion and chart adequately identify the groups for present purposes. The Court does not make a separate notice finding for each semantic passage because all controlled items were tendered as one coordinated review set.

In-Camera Materials Reviewed

The Court reviewed controlled versions of the primary and supplemental Vaughn indexes; the decision-tree, escalation-matrix, and response-coordination samples; Open Grid's opening memorandum; DOE's cross-motion and opposition; Open Grid's reply; and Elian Voss's in-camera declaration.

Each controlled item has an equal-page public counterpart. The two forms address corresponding subjects but use independent language. Public tokens state the claimed type of omitted field. Controlled copies use arbitrary labels for a condition, order, guideline, duty, safety, or communication category.

The set is relevant because the merits dispute concerns how those categories relate to surrounding administrative text. Direct review allows the Court to evaluate the parties' arguments without placing the controlled semantic presentation on the public docket. The Court finds generally that public disclosure of the set would defeat the purpose of using paired access forms.

This finding applies to the collection as a whole. The Court has not catalogued which pages contain which labels in this public order and does not distinguish evidentiary samples from party advocacy for purposes of closure.

Governing Access Principles

Judicial records carry a presumption of public access under the applicable common-law or First Amendment framework, depending on their role in adjudication. Before closing a record, a court must identify the source of access, give notice, consider less drastic alternatives, and make findings sufficient for review. First Amendment closure additionally requires a compelling interest and narrow tailoring.

The controlled materials accompany dispositive motions and will inform the Court's decision. The Court therefore assumes the more demanding access framework applies. DOE invokes protection of asserted nonpublic operational organization and human-safety functions. Open Grid accepts that particular passages may warrant controlled review but argues that the requested scope is not tailored.

The Court recognizes that subject-matter sensitivity alone is insufficient. It also recognizes that disclosure of context can sometimes expose a relationship even where a value is omitted. Here, the use of coordinated twins creates a record in which the public can understand the dispute while the Court can inspect the fuller semantic presentation.

The Court proceeds from those general principles and the common interests identified by DOE. It does not separately analyze the access weight or asserted interest for each individual filing.

Necessity and Alternatives

DOE contends that the controlled set displays category placement needed for in-camera evaluation and that unrestricted access would disclose the relationships it asks the Court to assess. The Court accepts that explanation for the set. It finds that preserving the controlled presentation is an important interest during adjudication.

The principal alternative is the existing public counterpart for each sealed item. Those versions present record purpose, category notices, factual background, and legal arguments without the inert labels. The Court finds generally that they provide substantial public access while omitting the controlled semantic relationships.

DOE also considered a single narrative declaration and passage-level redaction of controlled copies. It states that a single declaration would remove page correspondence and that repeated redaction would obscure the relation under review. The Court accepts those explanations without making findings about narrower treatment of each document or page.

Accordingly, the Court concludes at an aggregate level that sealing the controlled set is necessary and that the public twins are an adequate less restrictive alternative. It does not require DOE to submit document-specific redaction proposals. This conclusion applies equally to indexes, samples, memoranda, and declarations.

Scope and Duration

The seal covers every controlled item listed in the certificate. Public counterparts, the motion, the certificate, and this order remain open. Access to one public item does not create access to its controlled partner. Authorized review occurs only through the Court's controlled process.

The restriction will continue through final disposition in this Court, any appeal, and return of jurisdiction after appellate proceedings. It will then remain in effect until further order. A party may move to alter the scope or duration upon changed circumstances.

The Court adopts a common duration because the controlled items participate in the same exemption, segregation, and access disputes. It does not set shorter terms for advocacy documents or distinguish records that may cease to affect adjudication earlier. Administrative convenience and consistency favor one treatment.

The Court finds that this scope does not close the case or prevent public understanding of the parties' positions. It acknowledges Open Grid's argument that passage-specific or document-specific treatment could be narrower, but concludes that the paired structure is sufficiently protective of access for the current record.

Order

DOE's Consolidated Public Motion to Maintain Sealing is GRANTED. The Clerk shall accept and maintain under seal the controlled counterparts identified in the Certificate of Confidentiality and Sealed-Materials Chart. The corresponding public versions shall remain available on the open synthetic docket.

The Court will consider the controlled set in camera when resolving the cross-motions for summary judgment. Authorized counsel may use the controlled materials solely in this action and shall not reproduce them in a public filing. Nothing in this order authorizes access to another record or repository.

The seal shall remain in effect through district and appellate resolution and thereafter until modified by order. Any motion to modify must identify the affected item and proposed alternative. The Clerk need not create passage-level public versions beyond the counterparts already filed.

This order is based on common findings that the controlled set concerns asserted operational and human-safety relationships, that public counterparts are available, and that collection-wide restriction preserves the usefulness of in-camera review. The Court makes no merits ruling on the FOIA exemptions today.

Entered by Sable Hart, fictional United States District Judge, on November 26, 2025.